

but to limit the naturall liberty of particular men, in such manner, as they might not hurt, but assist one another, and joyn together against a common Enemy.

5. If the Sovereign of one Common-wealth, subdue a People that have lived under other written Lawes, and afterwards govern them by the same Lawes, by which they were governed before; yet those Lawes are the Civill Lawes of the Victor, and not of the Vanquished Common-wealth. For the Legislator is he, not by whose authority the Lawes were first made, but by whose authority they now continue to be Lawes. And therefore where there be divers Provinces, within the Dominion of a Common-wealth, and in those Provinces diversity of Lawes; which commonly are called the Customs of each severall Province; we are not to understand that such Customs have their force, onely from Length of Time; but that they were antiently Lawes written, or otherwise made known, for the Constitutions, and Statutes of their Sovereigns; and are now Lawes, not by vertue of the Præscription of time; but by the Constitutions of their present Sovereigns. But if an unwritten Law, in all the Provinces of a Dominion, shall be generally observed, and no iniquity appear in the use thereof; that Law can be no other but a Law of Nature, equally obliging all man-kind.

*Provinciall Lawes are not made by Custome, but by the Sovereign Power.*

6. Seeing then all Lawes, written, and unwritten, have their Authority; and force, from the Will of the Common-wealth; that is to say, from the Will of the Representative; which in a Monarchy is the Monarch, and in other Common-wealths the Sovereign Assembly; a man may wonder from whence proceed such opinions, as are found in the Books of Lawyers of eminence in severall Common-wealths, directly, or by consequence making the Legislative Power depend on private men, or subordinate Judges. As for example, *That the Common Law, hath no Controulers but the Parliament*; which is true onely where a Parliament has the Sovereign Power, and cannot be assembled, nor dissolved; but by their own discretion. For if there be a right in any else to dissolve them, there is a right also to controule them, and consequently to controule their controulings. And if there be no such right, then the Controulers of Lawes is not *Parlamentum*, but *Rex in Parlamento*. And were a Parliament is Sovereign, if it should assemble never so many, or so wise men, from the Countries subject to them, for whatsoever cause; yet there is no man will believe, that such an Assembly hath thereby acquired to themselves a Legislative Power. *Item*, that the two arms of a Common-wealth, are *Force, and Justice; the first whereof is in the King; the other deposited in the hands of the Parliament*. As if a Common-wealth could consist, where the Force were in any hand, which Justice had not the Authority to command and govern.

*Some foolish opinions of Lawyers concerning the making of Lawes.*

7. That Law can never be against Reason, our Lawyers are agreed; and that not the Letter, (that is, every construction of it,) but that which is according to the Intention of the Legislator, is the Law. And it is true: but the doubt is, of whose Reason it is, that shall be received for Law. It is not meant of any private Reason; for